

Forklift & Operator Provider Agreement

LiftCrew | Master subcontractor agreement | Texas starting form | Version 1.0 • October 6, 2026

REVIEW DRAFT. Complete all bracketed fields and obtain Texas counsel and insurance-broker review before use. The dollar amounts and commercial defaults below are proposed contract requirements, not statutory insurance minimums.

IMPORTANT: SECTIONS 8, 9, 13 AND 14 ALLOCATE INSURANCE, PROPERTY LOSS, INDEMNITY AND LIABILITY. READ THEM AND EXHIBIT A BEFORE SIGNING.

1. Parties, term and definitions

1.1 Parties. This Master Forklift and Operator Provider Agreement (Agreement) is effective [DATE] between [FULL LEGAL ENTITY NAME], a [STATE / ENTITY TYPE], doing business as LiftCrew, with notice address [ADDRESS] and notice email [EMAIL] (LiftCrew), and [PROVIDER FULL LEGAL NAME], a [STATE / ENTITY TYPE], with notice address [ADDRESS] and notice email [EMAIL] (Provider). A trade name alone does not identify a separate contracting entity. Each signatory warrants authority to bind the identified entity.

1.2 Defined terms. A Work Order is a written assignment accepted under Section 2. Services are the forklift operations and related work expressly stated in a Work Order. Equipment includes Provider-furnished forklifts, authorized attachments, delivery vehicles, trailers, safety devices and accessories. Personnel includes Provider's owners who work on a job, employees and approved subcontractors. Client means the LiftCrew customer identified in the Work Order. Site means the authorized work location. Client Property means goods, cargo, machinery, structures and other property belonging to Client or others affected by the Services. A business day excludes Saturdays, Sundays and legal holidays at the Site; cancellation hours are elapsed hours, including weekends and holidays.

1.3 Term. This Agreement continues until terminated under Section 16. It does not guarantee assignments, exclusivity or minimum revenue. Provider may decline new assignments without penalty. Once accepted, a Work Order is a binding commitment subject to this Agreement.

2. Work Orders, authority and changes

2.1 Acceptance and content. No work may begin until both parties accept a Work Order, this Agreement is signed, and onboarding requirements are satisfied. Acceptance may be by signature, authenticated electronic acceptance or an email expressly identifying the Work Order and this Agreement's version. Each Work Order must identify dates, Site, task, load details and values, Equipment and capacity, approved Personnel, price, time basis, transportation, insurance additions and unusual hazards. Exhibit B is the form. Blank essential safety, capacity, insurance or pricing fields require resolution before dispatch.

2.2 Contract priority. A later amendment signed by authorized representatives prevails over this Agreement only where it identifies the section being changed. Otherwise this Agreement, including Exhibit A, controls over a Work Order, except for fields expressly left to the Work Order. Accepted project-specific safety and insurance requirements may be stricter. Provider invoices, delivery tickets, hyperlinks, estimates and standard terms do not change this Agreement. Client's

contract is not incorporated wholesale; only requirements supplied to and expressly accepted by Provider apply, and never to expand indemnity beyond Section 13 without a signed amendment.

2.3 Change control. Provider shall promptly report differing loads, weights, dimensions, lift heights, site conditions, dates or scope. Only LiftCrew's designated commercial representative may approve changed prices or scope. A Site contact may confirm task completion and time, but cannot waive insurance, safety duties or legal terms. Provider shall stop affected work pending a safe, authorized change. Necessary emergency action to protect life or prevent imminent property damage may be taken without prior commercial approval; reasonable documented costs are allocated according to responsibility for the emergency.

2.4 No unauthorized commitments. Provider may not collect payment from Client, offer side work during an assignment, sign releases for LiftCrew, admit liability on LiftCrew's behalf, extend credit, accept cargo valuation limitations, or bind LiftCrew to another contract. Provider shall direct commercial requests through LiftCrew. These restrictions do not prohibit truthful reporting, legal compliance or Provider's independent business outside accepted assignments.

3. Independent business and personnel responsibility

3.1 Relationship. The parties intend a business-to-business subcontracting relationship. Subject to lawful safety requirements and agreed results, Provider selects, employs, supervises and pays its Personnel and controls its technical means and methods. Provider furnishes its own Equipment and ordinary operating resources, bears business expenses and profit-or-loss risk, and may serve other customers. Scheduling a Site access window does not transfer supervision of Personnel. Neither party is the other's partner or general agent.

3.2 Employment obligations. Provider is responsible for lawful wages, overtime, payroll taxes, employment eligibility, benefits, training and required employment records for its Personnel, and shall submit an accurate Form W-9 through a secure channel. Provider shall identify applicable public-project, prevailing-wage or union requirements before accepting work and comply with requirements included in the Work Order. No term determines statutory worker status or waives rights of an employee or regulator. LiftCrew remains responsible for duties the law independently imposes on it.

3.3 Subcontracting. Provider shall not reassign, broker or subcontract an accepted Work Order without LiftCrew's prior written approval. Approved subcontractors must satisfy equivalent safety and insurance requirements, sign written obligations consistent with this Agreement, and be identified before dispatch. Approval does not release Provider's responsibility for their work. No unapproved replacement operator or machine may be sent.

4. Operator qualifications and conduct

4.1 Qualifications. Provider shall assign only operators age 18 or older who are competent for the specific Equipment, attachments and work environment. Before dispatch, Provider shall supply employer training-certification records identifying the operator, training date, evaluation date, evaluator or trainer, and Equipment types covered. Provider shall maintain formal instruction, practical training and workplace evaluation meeting applicable OSHA requirements, including 29 CFR 1910.178(I) or 1926.602(d). An online completion card alone is insufficient evidence of practical competence. Evaluation must remain current, including at least every three years and earlier refresher training and evaluation when legally required, such as after unsafe operation, an accident or near miss, an adverse evaluation, assignment to a different truck type, or a workplace change affecting safe operation.

4.2 Job preparation. Provider shall assess previous training against the assignment, complete any necessary additional instruction, verify site-specific hazards with Client, and authorize each operator before operation. Required driver licenses, endorsements and medical qualifications for transportation must be valid. Provider shall promptly disclose suspension, disqualification or a material qualification deficiency affecting an assignment. Background screening, if a disclosed Site requirement, must be lawful and relevant; unnecessary personal data shall not be shared.

4.3 Fitness and conduct. Personnel must be fit for duty, sufficiently rested, able to communicate safety instructions, and free of impairment. Provider shall enforce lawful rules against on-duty alcohol, illegal drugs, harassment, violence and unsafe conduct; provide required protective equipment; and comply with reasonable Site security rules disclosed in advance. LiftCrew may require removal from its assignment for an objectively reasonable safety, qualification or misconduct concern. Provider retains employment decisions and supplies a qualified replacement subject to approval. No party may retaliate for a good-faith safety report or lawful stop-work action.

5. Equipment condition, capacity and suitability

5.1 Supply warranty. Provider warrants that it owns or lawfully controls the Equipment, has permission to use and transport it for paid third-party work, and supplies it in safe working condition, properly maintained and suitable for the accurately described assignment. Provider shall disclose any rental-owner restrictions and obtain required permissions. Equipment must have legible identification, applicable load charts and capacity plates, required guards and safety devices, and manufacturer instructions available to the operator. Provider shall verify capacity for the actual attachment, load center, lift height and operating configuration, not merely nominal machine capacity.

5.2 Inspection and repair. Provider shall inspect before use and as often as law, manufacturer instructions and conditions require, keep inspection and maintenance records, and remove unsafe Equipment from service immediately. Repairs shall be performed by qualified persons. Safety interlocks, guards, restraints and alarms shall not be disabled. Any capacity-affecting modification requires legally required manufacturer approval and updated markings. Provider shall address recalls and known defects before dispatch.

5.3 Costs and breakdowns. Unless the Work Order expressly states otherwise, rates include ordinary fuel or charging, maintenance, wear items and repairs. Provider-caused breakdown, inadequate Equipment, operator unavailability and rework are not billable. Provider shall notify LiftCrew promptly and propose a safe replacement and estimated arrival; LiftCrew must approve material substitutions. Provider shall reimburse reasonable incremental cover costs caused by its breach, after mitigation and without duplication, as direct damages. Equipment recovery shall be safe and lawful.

6. Site coordination and operating safety

6.1 Shared preparation. Before work, Provider shall participate in a documented Site briefing with Client's responsible contact. The parties shall identify traffic separation, emergency arrangements, load paths, spotters, floor and ground support, clearances, loading areas, hazardous materials and other active work. Client supplies Site information, but Provider must evaluate apparent conditions and must not rely on plainly incomplete or unreliable information. Uncertain support capacity or load information requires verification by a qualified person before work.

6.2 Operating safeguards. Provider shall control machine operation; use authorized restraints and protective equipment; maintain stable loads and clear sight lines; keep people outside the operating zone and away from raised loads; and follow applicable speed, travel, parking, charging and fueling requirements. Before entering a truck or trailer, Provider shall verify adequate deck and dock capacity, secure dockboards, protection against movement and required trailer support. Provider shall use a trained spotter when required by the risk assessment, visibility, Site conditions or law. The Work Order identifies who supplies spotters and barriers; absence of a necessary safeguard requires stopping work, not improvising.

6.3 Restrictions. Unless a separate written specialty rider approves the specific task, Services exclude personnel lifting, suspended-load or crane-like work, tandem lifts, lifting over occupied areas, public-road operation of the forklift, rail or marine operations, energized-line exposures, hazardous-material handling, and work in explosive, confined or oxygen-deficient environments. Ordinary indoor work requires an appropriate power source, ventilation and exposure controls. No unauthorized rider, overload, makeshift extension, attachment, towing, side pull or bypass of a safety device is permitted.

6.4 Stop-work authority. Any person may call an immediate safety stop. Provider shall secure the machine and load, notify LiftCrew and the Site contact, identify the concern, and resume only after competent verification of correction. A Client request, deadline, signature or offer of additional payment never authorizes unsafe work. Provider shall document the reason and duration of a stoppage. Charges follow Sections 11 and 12; a stop for Provider's deficiency is not billable.

6.5 Nondelegable duties. The allocation of tasks does not relieve any party of OSHA, environmental, employment, premises or other duties imposed by law. Provider shall cooperate with lawful inspections and give LiftCrew prompt notice of a citation or investigation related to the Services, to the extent legally permitted. LiftCrew's review or inspection does not certify Equipment safety or excuse Provider's obligations.

7. Delivery, transportation and overnight storage

7.1 Transportation. Provider is responsible for lawful Equipment loading, securement, transport, unloading and retrieval allocated to it, including qualified drivers, vehicle inspections, insurance, permits, licenses and carrier authority when applicable. A separately hired hauler must be disclosed and approved and meet the transportation insurance requirements. Risk of loss to Provider Equipment remains with Provider except to the extent another party is legally responsible. Transport of Client goods over public roads is excluded unless separately contracted under appropriate transportation terms and coverage.

7.2 Custody. Provider shall not leave Equipment overnight without an approved storage location, key-control plan and pickup arrangement in the Work Order. It shall lower attachments, secure the machine, remove keys or disable unauthorized access, and follow manufacturer parking requirements. Client may not operate the Equipment. Overnight presence alone does not make Client or LiftCrew an insurer or guarantor of it. Provider shall retrieve promptly when work ends; ongoing rental charges require an expressly agreed reservation or storage rate.

8. Insurance as a condition of work

8.1 Required coverage. Provider shall obtain and maintain, at its expense, all coverage and endorsements in Exhibit A before dispatch and throughout the required periods. LiftCrew's legal entity and other specifically identified parties must have the required additional-insured status where lawful. Coverage requirements survive completion for the periods stated. Insurance limits are minimum purchasing requirements and do not limit Provider's liability.

8.2 Evidence and exceptions. Provider shall furnish a lawful certificate, declarations, required endorsements and relevant policy language sufficient for verification. A certificate alone does not amend coverage or establish rights absent policy support. LiftCrew's acceptance, failure to review, payment or dispatch does not waive a deficiency. Only a written exception signed by LiftCrew's designated risk approver, identifying the specific gap and any restrictions, may vary Exhibit A; no exception may waive legally mandatory coverage. Silence is not approval.

8.3 Loss of coverage. Provider shall stop affected work and immediately notify LiftCrew of actual or threatened cancellation, lapse, material restriction or material exhaustion affecting required coverage. Provider shall comply with notice duties in Exhibit A. LiftCrew may suspend dispatch without paying for Provider-caused downtime. Provider is responsible for its deductibles, retentions and loss caused by its failure to procure required insurance, subject to lawful limits on risk transfer. LiftCrew has no duty to purchase replacement insurance for Provider.

9. Damage, custody and environmental responsibility

9.1 Client Property. Provider shall use reasonable care to prevent loss and document apparent pre-existing damage before handling. Provider is responsible for direct damage to Client Property to the extent caused by its or its Personnel's negligence, willful misconduct or breach, including avoidable damage to floors, docks, utilities, doors, racks and goods. Provider shall not accept a higher-value or materially different load until LiftCrew confirms scope and applicable handling coverage. Client packaging or instructions do not excuse obvious unsafe handling.

9.2 Provider Equipment. Provider bears ordinary wear, mechanical failure, maintenance and ownership risk. LiftCrew owes Provider for Equipment damage only to the extent caused by LiftCrew's own actionable conduct or a specific signed undertaking. LiftCrew does not guarantee Client's payment or liability. Provider may pursue a responsible Client or other party through lawful processes with notice to LiftCrew and without duplicate recovery, subject to any valid insurance waiver.

9.3 Measure and mitigation. Direct physical-loss damages shall reflect reasonable necessary repair or, if repair is impracticable, reasonable replacement or actual value as the governing law permits, accounting for prior condition, betterment, salvage and recovery. Documented reasonable loss of use and cleanup are recoverable when legally caused by the responsible party and not otherwise excluded. No party may charge twice for the same loss. Parties shall reasonably mitigate and preserve inspection rights.

9.4 Environmental events. Provider shall prevent and promptly contain, report and remediate spills it causes, using qualified responders and lawful disposal. It shall not disturb undisclosed hazardous material and shall stop affected work on discovery. Liability for a spill or pre-existing contamination is allocated by causation and applicable law; this clause does not shift Client's or LiftCrew's own fault to Provider or authorize uninsured hazardous work.

10. Incidents, claims and cooperation

10.1 Immediate response. Provider shall first protect people, contact emergency services when needed, stop and isolate affected operations, and notify LiftCrew and Client as soon as safely possible, ordinarily within one hour of awareness. Provider shall deliver an initial factual report within 24 hours, supplemented as facts become available. These contractual targets do not extend any shorter legal or policy deadline.

10.2 Evidence and reporting. Preserve equipment, failed parts, photographs, inspection and training records, telematics, messages, witness information and Site conditions. Do not repair, dispose of or alter material evidence before reasonable inspection except for necessary safety or preservation measures, which must be documented. Provider shall promptly notify its insurers and make legally required reports. Each responsible employer retains its own regulatory reporting duty. No party shall conceal facts, obstruct a regulator or condition emergency assistance on a release.

10.3 Claim handling. Provider shall cooperate with LiftCrew and insurers in investigation, tenders and recovery and promptly forward demands and legal papers. Provider may truthfully describe facts but shall not admit another party's liability, waive defenses or settle another party's interests without consent. Incident notice is not a contractual waiver of a claim for lateness; the recipient retains remedies for actual prejudice as allowed by law. Exhibit C supplies reusable field records.

11. Rates, billable time and payment

11.1 Rates. The Work Order states the Provider rate separately from Client's rate. Unless expressly changed, a reserved service day includes up to eight billable on-site hours for the listed machine and operator, with one day as the minimum for each date expressly reserved. A day is not a 24-hour rental or unlimited operation. Additional time uses the stated hourly rate in 15-minute increments without cumulative rounding beyond actual aggregate time. Meal breaks during which Personnel are completely relieved are excluded. No overtime, weekend, fuel or other premium applies unless stated in the Work Order.

11.2 Time and standby. Time starts no earlier than the scheduled start and actual arrival, whichever is later, when conforming Equipment and qualified Personnel are available for briefing and work. Normal Site briefing, inspection and setup count within reserved time; extra time caused by Provider deficiency does not. Client-caused waiting within a reserved day consumes included hours without an extra concurrent standby charge. Waiting beyond included hours is payable only at an authorized standby or overtime rate. Unscheduled travel is not on-site time. No two rates apply to the same time interval.

11.3 Records and invoicing. Provider shall submit accurate time, task, condition and approved-change records daily and invoice within ten business days after completion, or weekly for longer jobs. A missing Site signature is not automatic forfeiture if reliable records establish performance. A signature acknowledges observed facts, not a release. LiftCrew shall pay undisputed amounts within 30 calendar days after a complete invoice, unless the Work Order states a different lawful term. Payment is not contingent on Client paying LiftCrew.

11.4 Disputes and deductions. LiftCrew shall identify a good-faith invoice dispute within ten business days after receipt when reasonably discoverable and pay the undisputed balance when due. Late notice does not waive fraud, hidden error or other legal rights. A setoff must be lawful, documented and limited to an amount agreed in writing or finally determined; an unproven

third-party claim alone does not justify withholding all earned fees. Provider shall pay its own suppliers and Personnel and promptly resolve liens resulting from its nonpayment, using statutory lien-release forms where required. No unlawful prospective lien waiver is required.

12. Cancellation, delay and interruption

12.1 LiftCrew cancellation without Provider fault. Unless a Work Order expressly changes this rule, cancellation at least 48 hours before the first affected start incurs no reservation charge; 24 to less than 48 hours permits a charge capped at 50% of the first canceled service day's Provider rate; less than 24 hours permits a charge capped at 100% of that day. The actual charge shall not exceed documented nonrecoverable committed costs plus reasonably supported lost net margin after mitigation. Only the first canceled day is charged, unless a specifically negotiated multi-day commitment says otherwise. Separately authorized, actually incurred nonrecoverable transportation may be added once; no duplicate recovery is permitted.

12.2 Provider failure. No cancellation charge is owed where cancellation results from Provider breach, unsafe Equipment, inadequate qualifications or deficient insurance. If Provider cannot perform, it shall give immediate notice and cooperate in replacement. LiftCrew may recover reasonable incremental replacement costs caused by Provider breach, subject to mitigation and this Agreement. Client's failure to pay LiftCrew is not Provider fault.

12.3 Neutral events and weather. For dangerous weather, lawful shutdown or another event beyond the affected party's reasonable control and not caused by deficient preparation, either party may pause or cancel the affected work. Earned Services and separately approved nonrecoverable transportation remain payable; unperformed service days and ordinary cancellation charges do not accrue. Good-faith weather stops shall not trigger pressure to operate. Ordinary maintenance failures, lack of funds and avoidable staffing shortages are not excused. Each party shall give prompt notice, mitigate, and cooperate on rescheduling without an automatic guarantee of availability.

13. INDEMNITY, DEFENSE AND LAWFUL ALLOCATION

13.1 PROVIDER INDEMNITY. TO THE FULLEST EXTENT PERMITTED BY LAW, PROVIDER SHALL INDEMNIFY AND HOLD HARMLESS LIFTCREW, THE CLIENT IDENTIFIED IN THE WORK ORDER, AND THEIR RESPECTIVE OFFICERS, DIRECTORS AND EMPLOYEES FROM THIRD-PARTY CLAIMS, JUDGMENTS, REASONABLE SETTLEMENTS AND REASONABLE DEFENSE COSTS, BUT ONLY TO THE EXTENT CAUSED BY PROVIDER'S OR ITS PERSONNEL'S NEGLIGENCE, WILLFUL MISCONDUCT, VIOLATION OF LAW OR BREACH OF THIS AGREEMENT IN CONNECTION WITH THE SERVICES. THIS INCLUDES LEGALLY RECOVERABLE BODILY INJURY, DEATH, PROPERTY DAMAGE AND EMPLOYMENT OR TAX CLAIMS ARISING FROM PROVIDER'S OWN OBLIGATIONS. FINES OR PENALTIES ARE INCLUDED ONLY WHEN LAWFULLY TRANSFERABLE.

13.2 EXPRESS EXCLUSION OF OTHERS' FAULT. PROVIDER DOES NOT INDEMNIFY OR DEFEND ANY PROTECTED PARTY FOR THAT PARTY'S OWN NEGLIGENCE, GROSS NEGLIGENCE, WILLFUL MISCONDUCT, STATUTORY VIOLATION OR BREACH, OR FOR THE FAULT OF PERSONS FOR WHOM THAT PARTY IS RESPONSIBLE OTHER THAN PROVIDER AND ITS PERSONNEL. CONCURRENT-FAULT CLAIMS ARE ALLOCATED ACCORDING TO EACH RESPONSIBLE PARTY'S SHARE. NO STRICT OR NO-FAULT ASSUMPTION OF ALL SITE LOSSES IS CREATED. EMPLOYEE CLAIMS ARE SUBJECT TO THE SAME FAULT LIMITATION; THIS FORM DOES NOT ELECT A BROADER EMPLOYEE-CLAIM EXCEPTION.

13.3 Defense procedure. The protected party shall tender the claim promptly with available papers; late tender reduces obligations only to the extent of material prejudice as law permits. Provider shall, to the lawful extent of Section 13.1, arrange a defense through its insurer or competent counsel reasonably acceptable to the protected party. For mixed allegations, the parties shall reasonably agree on interim allocation; absent agreement, each may defend itself, with Provider reimbursing reasonable defense costs attributable to its covered share after agreement or determination. Provider need not fund the defense of another party's excluded fault. Policy-based defense rights remain governed by the policy and law. Conflicts requiring separate counsel shall be handled consistently with applicable law and coverage.

13.4 Settlement and enforcement. No settlement may impose an admission, nonmonetary duty, uncovered payment or incomplete release on a protected party without its written consent, not unreasonably withheld. No party shall impair another's insurer rights. These obligations survive completion and are independent of insurance procurement, but cannot expand unlawful risk transfer. Reasonable enforcement costs are recoverable only to the extent awarded under law or Section 17.

13.5 Mandatory law. Texas Insurance Code Chapter 151, Texas Civil Practice and Remedies Code Chapter 127, and other applicable anti-indemnity, insurance and public-policy limitations control whenever applicable. No indemnity, defense, additional-insured, waiver, reimbursement or other clause may be used to accomplish indirectly a prohibited transfer. An unenforceable obligation is severed or limited to the extent law allows. A specialty or out-of-state assignment requires any necessary rider before work.

14. LIMITATION OF LIABILITY

14.1 LIFTCREW LIMIT. TO THE EXTENT LAWFUL, LIFTCREW'S AGGREGATE LIABILITY TO PROVIDER ARISING FROM A WORK ORDER, INCLUDING FOR LIFTCREW'S ORDINARY NEGLIGENCE, IS LIMITED TO THE GREATER OF \$100,000 OR THE TOTAL FEES PAID OR PAYABLE TO PROVIDER UNDER THAT WORK ORDER. THIS LIMIT DOES NOT APPLY TO EARNED PAYMENT OBLIGATIONS, BODILY INJURY OR DEATH, FRAUD, GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR LIABILITY THAT LAW PROHIBITS LIMITING.

14.2 CONSEQUENTIAL LOSS. NEITHER PARTY OWES THE OTHER LOST BUSINESS OPPORTUNITIES, LOST PROFITS, PRODUCTION INTERRUPTION OR OTHER INDIRECT, SPECIAL OR CONSEQUENTIAL DAMAGES. THIS EXCLUSION DOES NOT ELIMINATE EXPRESSLY AUTHORIZED CANCELLATION COMPENSATION; REASONABLE DIRECT COVER, REPAIR, CLEANUP OR EQUIPMENT LOSS-OF-USE COSTS; THIRD-PARTY DAMAGES WITHIN SECTION 13; FRAUD, GROSS NEGLIGENCE OR WILLFUL MISCONDUCT; OR NONWAIVABLE LIABILITY. NO AMOUNT MAY BE RECOVERED TWICE.

14.3 Provider exposure. No general monetary cap is imposed on Provider's direct-damage, insurance-procurement or lawful indemnity obligations. Provider's insurance limits do not cap those obligations. Client's separate agreement with LiftCrew does not automatically limit Provider's obligations to LiftCrew, but LiftCrew may not recover a loss it did not incur or obtain double recovery.

15. Records, confidentiality and customer relationships

15.1 Records. Provider shall retain job, training, maintenance, insurance, payment and incident records for at least six years after the last related Services, longer if law requires or a claim or preservation notice remains pending. On reasonable notice it shall permit a relevant compliance review, protecting unrelated customers and privileged material. Safety-critical evidence shall be produced before dispatch or promptly following an incident. LiftCrew may independently verify insurer and qualification information through lawful channels.

15.2 Confidentiality. Each party shall protect nonpublic pricing, customer contacts, procedures, facility information and personal data obtained from the other, use it only to perform or enforce the Agreement, and disclose it only to persons with a legitimate need and appropriate obligations. Public information, independently developed information and lawful prior knowledge are excluded. Disclosures required by law and protected reports are allowed; advance notice is required only where lawful. Provider may not publish Client images, use logos, or use confidential leads to divert an active LiftCrew assignment. This is not a general noncompete or restriction on independently developed customers.

15.3 Data incidents. A party discovering unauthorized access to shared confidential information shall notify the other without undue delay and, when practicable, within 24 hours, preserve evidence and cooperate in legally required response. Return or securely destroy confidential information on request, except retained legal, insurance or archival records, which remain protected. These duties survive for three years; trade-secret protection lasts while legally protected.

16. Suspension and termination

Either party may terminate future assignments on 30 days' written notice. Accepted Work Orders continue unless separately canceled under Section 12. LiftCrew may immediately suspend or terminate affected work for unsafe conduct, missing insurance, falsified records, unauthorized subcontracting, abandonment or material illegality. For another curable material breach, the nonbreaching party shall give written notice and five business days to cure, unless continued work would create an imminent risk. Provider may suspend for undisputed overdue payment after five business days' written notice, while safely securing work and property. Termination does not cancel accrued payment, lawful damages, indemnity, confidentiality, recordkeeping or dispute obligations. Unused advance payments shall be reconciled and refunded within ten business days after final accounting.

17. Governing law and disputes

Texas law governs without using conflict rules to defeat mandatory Site law. Subject to mandatory venue statutes, exclusive venue is the state courts in [TEXAS COUNTY] or the federal district embracing that county if federal jurisdiction exists. The parties shall first attempt good-faith resolution through senior representatives for ten business days, then mediation in that county within 30 days if either requests it. These steps do not bar emergency relief, timely claim filing, insurance tenders, statutory remedies or preservation of limitations. No mandatory arbitration or jury waiver is created. A court may award reasonable attorneys' fees and costs to the substantially prevailing party to the extent lawful; no double recovery is allowed. Contractual incident-reporting periods do not shorten statutory time to sue.

18. General terms and execution

This Agreement and accepted Work Orders are the entire agreement on the Services. Amendments and waivers require a writing signed by the party bound; electronic signatures and counterparts are effective. Formal notices shall be sent to the listed notice email and, for termination, breach or a legal claim, also by tracked delivery to the listed address; receipt or documented delivery controls, and a failed email alone is insufficient. Operational messages may use designated contacts. Neither party may assign this Agreement without the other's written consent, except to a successor in a merger or sale of substantially all relevant assets that assumes obligations and maintains required qualifications and insurance; prior notice is required. No assignment releases accrued liability. Except for the protected parties' rights under Section 13 and actual policy rights, there are no third-party beneficiaries. Severability does not permit creation of a broader indemnity than law allows. Failure to enforce once is not continuing waiver. Nothing waives employee rights or authorizes unlawful conduct.

By signing, each party accepts this Agreement and Exhibits A-C and specifically acknowledges Sections 8, 9, 13 and 14.

LiftCrew contracting entity	Provider contracting entity
Legal name: [_____]	Legal name: [_____]
Authorized signer: [_____]	Authorized signer: [_____]
Title: [_____]	Title: [_____]
Signature: [_____]	Signature: [_____]
Date: [_____]	Date: [_____]
Risk approver / email: [_____]	Insurance contact / email: [_____]

Exhibit A — Mandatory provider insurance

This exhibit is part of the Agreement. Coverage must match the legal entity performing the work, all operating states, actual forklift-with-operator activities, approved Personnel and Equipment. The limits below are proposed purchasing requirements. Higher project-specific limits may be required before acceptance. No provision is a representation that a loss will be insured.

Coverage	Minimum requirement
Commercial general liability (CGL)	Occurrence form; \$1,000,000 each occurrence; \$2,000,000 general aggregate; \$2,000,000 products/completed operations aggregate. Include applicable operations, contractual liability for insured contracts, independent contractors and separation of insureds.
Commercial auto liability	\$1,000,000 combined single limit per accident for owned, hired and nonowned autos used in the Services; applicable loading/unloading and transportation exposures must be covered without a gap with CGL. Applies to the actual hauler.
Workers' compensation	Statutory benefits in every required jurisdiction for all Personnel who perform work, including working owners through lawful coverage arrangements. No exclusion of an assigned operator without a separately approved exception.
Employers' liability	\$1,000,000 each accident; \$1,000,000 disease-policy limit; \$1,000,000 disease-each employee.
Umbrella / excess liability	\$2,000,000 each occurrence and aggregate over required CGL, auto and employers' liability. Follow-form or equivalent protection for the actual operations and required additional insureds. It does not automatically sit over handling coverage.
Property being handled	Riggers legal liability, bailee/handling legal liability or another approved form expressly covering forklift loading, unloading, lifting, moving and positioning of others' property. At least the greater of \$250,000 or the maximum total replacement value exposed in one occurrence. Per-item, per-lift, per-location and aggregate sublimits must not defeat that requirement.
Provider Equipment physical damage	Contractors equipment / inland marine coverage for owned, leased and rented machines and attachments at adequate replacement values, including approved transit and overnight locations. Include applicable theft and overturn exposure; any material exclusions must be disclosed.
Special exposures, if approved	Before accepting relevant work: pollution liability, longshore/USL&H, railroad protective, higher excess limits or other project-specific coverages stated in a signed rider. Ordinary CGL is not presumed to cover these exposures.

A.1 Additional insureds. Provider shall obtain policy-supported additional-insured status for LiftCrew's exact contracting legal entity, and for the specific Client and Site owner listed in the Work Order where requested and lawful, for liability caused in whole or part by Provider's covered acts or omissions. CGL must include ongoing and completed operations, using CG 20 10 and CG 20 37 or substantively equivalent endorsements appropriate to the work. Auto and

umbrella/excess shall extend insured status where appropriate to their forms and the required exposure. A blanket endorsement is acceptable only if its written-contract, timing, privity, operations and location conditions are actually met. Work Orders must identify upstream parties before work; an after-the-loss request is insufficient. No prohibited coverage for another party's independent fault is required.

A.2 Primary coverage and subrogation. For required additional-insured coverage, Provider policies shall respond as primary and noncontributory to LiftCrew's and listed upstream parties' insurance, to the extent lawful and supported by endorsement. Obtain insurer-authorized waivers of subrogation in favor of those parties on CGL, auto and workers' compensation and, where available for the exposure, Equipment coverage. Any unavailable waiver requires a disclosed, signed exception before dispatch. No waiver shall defeat mandatory law or be assumed from a certificate. These requirements do not make LiftCrew responsible for Provider's deductibles.

A.3 Handling coverage review. Furnish the actual insuring agreement, schedule, limits and relevant endorsements/exclusions for damage to property being handled. Coverage must address the complete approved handling operation, not only goods suspended from a crane hook or while in road transit. Disclose restrictions for care/custody/control, the particular part being worked on, loading/unloading, mechanical breakdown, overload, fragile goods, unattended property, subcontracted work and employee acts. Obtain lawful endorsements or a suitable separate policy where needed; otherwise do not accept the affected work without an express risk exception. An umbrella is not assumed to fill an underlying exclusion. Where permitted by the coverage form and insurable interest, identify the property owner as loss payee and provide LiftCrew appropriate insured status for its exposure; a loss-payee designation is not liability insurance for LiftCrew.

A.4 Workers' compensation gaps. A policy excluding the owner who will operate the machine does not satisfy the default requirement for that operator. Occupational accident, health insurance and an independent-contractor affidavit are not substitutes. If a sole proprietor cannot obtain the required arrangement, LiftCrew must receive the actual coverage/exclusion documents and approve a separate counsel- and broker-reviewed exception before any work; the default is no dispatch. Statutory obligations cannot be waived. Where temporary, leased or borrowed-employee exposure actually exists, appropriate employers' liability or alternate-employer endorsements must be reviewed; the Agreement itself creates none.

A.5 Insurers and retentions. Insurers must be lawfully authorized for the placement in the relevant state and rated at least A–, financial size VII by AM Best, or separately accepted in writing. Surplus-lines placement is permitted only where lawful and disclosed; statutory workers' compensation must be valid in the jurisdiction. Provider shall disclose deductibles or self-insured retentions exceeding \$10,000, defense within limits, aggregate erosion that could impair an assignment, and material exclusions affecting Services. No higher retention or self-insurance program is accepted without written approval. Provider shall fund deductibles and retentions when due.

A.6 Duration. Maintain operational coverages throughout performance, delivery, retrieval and any period of responsibility under the policy. Maintain CGL completed-operations coverage and required additional-insured completed-operations protection for at least three years after the last Services, or longer if the accepted project rider requires. Any approved claims-made policy must have a retroactive date no later than first Services and continuous renewal or an extended-reporting arrangement for at least three years after completion, with limits adequate for the exposure. An extended-reporting period does not cover new acts after termination.

A.7 Delivery and renewal evidence. At least two business days before first dispatch, or earlier if reasonably needed, provide a lawful certificate, declarations, additional-insured endorsements, primary/noncontributory and subrogation endorsements, handling coverage documents, and working-owner coverage evidence. Renewals are due before expiration with no lapse. On request, furnish relevant policy sections and, if reasonably necessary, a policy copy with unrelated confidential information redacted. Do not ask an insurer or producer to alter a certificate, sign an unapproved coverage affidavit, or promise rights absent from the policy; use approved certificates and actual policy documents.

A.8 Changes and cancellation. Provider shall notify LiftCrew immediately upon learning of a lapse, cancellation, nonrenewal, material adverse change or insufficient remaining limits, and before the effective date whenever advance notice is available. Provider shall seek insurer notice endorsements of 30 days for cancellation and ten days for nonpayment, if available and lawful, and disclose when unavailable. The insurer owes only notice required by its policy or law; Provider's separate notice duty remains. No notice clause extends expired coverage.

A.9 Review and claims. Provider authorizes lawful direct verification with its insurance representatives and shall cooperate in claim tenders. LiftCrew's review records are internal administrative records, not substitute certificates. Failure to buy required coverage is a material breach. Recoverable damages for that failure must be proved and cannot create a prohibited indemnity. No policy is amended by this Agreement.

Exhibit B — Provider Work Order

Work Order number: [_____] | Agreement date/version: [_____] | Date accepted: [_____]

Required field	Assignment details
LiftCrew entity / dispatch contact	[Legal name; name; mobile; email]
Provider entity / supervisor	[Legal name; name; mobile; email]
Client / Site owner / additional insureds	[Exact legal names, addresses and contractual relationship]
Site / project classification	[Address; indoor/outdoor; warehouse/construction/other; special jurisdiction]
Dates / access / local timezone	[Each reserved date, start and end; delivery and pickup windows]
Task / exclusions / volume	[Origin and placement; approximate quantity; excluded work]
Load details	[Maximum weight; dimensions; load center; lift height; packaging; attachment; stability]
Values and accepted insurance	[Maximum one-item value; total exposed per occurrence; handling limit; endorsements reviewed]
Equipment	[Owner; make/model; serial; configuration; rated capacity at actual reach/height/load center; fuel/power]
Operator / backup / qualification	[Names; employer; evaluation dates; equipment types; approved backup]
Site conditions / safeguards	[Support and dock capacity; slopes; clearances; utilities; ventilation; traffic; hazards]
Spotters / barriers / support duties	[Named supplier of each; qualified contact; communication method]
Provider compensation	[\$___ per day for ___ hours; extra-hour rate \$___; standby \$___; authorized premiums]
Delivery / pickup / other expenses	[Amounts; who arranges; included fuel; any approved expense cap]
Billing / cancellation variations	[Net 30 default; identify any negotiated departures and master section]
Overnight / off-hire / storage	[Approved location and security; reservation charge if any; pickup trigger and contact]
Project insurance / riders	[Additional limits; specialty rider; any signed risk exception]

Required field	Assignment details
Commercial approval authority	[LiftCrew name/email; emergency contact; scope-change limit]

If a required rate, load, value, qualification or insurance detail is unresolved, this order is not cleared for dispatch. No specialty work is authorized merely by mentioning it in a task description.

LiftCrew acceptance: [NAME / SIGNATURE / DATE] Provider acceptance: [NAME / SIGNATURE / DATE]

Exhibit C — Field records

C.1 Daily readiness and service record. Complete for each shift; this is a factual record, not a liability release or insurance certificate.

Record	Entry
Job / date / operator / machine	[_____]
Pre-use inspection / deficiencies corrected	[Record reference; status; responsible person]
Site briefing / contacts / emergency plan	[Time; names; emergency address/access]
Load, capacity and route verified	[Weights/configuration; support; clearance; any changes]
Dock, trailer, pedestrians, spotter	[Safeguards verified; spotter name; communication]
Start / stop / breaks / standby	[Times and causes; no concurrent billing]
Work completed / changes approved	[Tasks; approvals; uncompleted work]
Condition / photos / storage / keys	[Before/after records; overnight arrangement; pickup]
Operator and Site contact acknowledgment	[Names/signatures; any disputed facts; absence explained]

C.2 Incident supplement. Job [____]; occurrence date/time [____]; exact location [____]; reporter [____]; persons involved [____]; emergency action [____]; factual description [____]; property/equipment affected [____]; witnesses/contact information [____]; photographs/records preserved [____]; LiftCrew and Client notified at [____]; insurer and legally required authority notified by/at [____]; unsafe condition corrected by [____]; work resumption approval and basis [____]. Separate facts from assumptions; preserve originals and submit through a secure channel.